

24CHCV04826 24CHCV04826

County: los-angeles

Division: Civil Law and Motion

Department: F47

Hearing date: 2026-09-11

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Case Number: 24CHCV04826 Hearing Date: September 11, 2026 Dept: F47

Dept. F47

Date: 9/11/26

Case #24CHCV04826

MOTION TO

COMPEL FURTHER RESPONSES

(Form

Interrogatories, Set 1)

Motion filed on 3/26/26.

MOVING PARTY: Defendant Horace Ting

RESPONDING PARTY: Plaintiff Nathan Gonzalez

RELIEF REQUESTED: An order compelling Plaintiff

Nathan Gonzalez to provide further responses, without objections, to Form

Interrogatories, Set 1, within 15 days. Additionally, Defendant Horace Ting requests

an order that Plaintiff and/or Plaintiff's attorney, Abdul 'Sal' Wakil, pay

Defendant sanctions in the amount of \$869.95.

RULING: The motion is placed off calendar.

SUMMARY OF FACTS & PROCEDURAL HISTORY

This action arises out of an automobile accident that occurred on 1/8/23. On 12/31/24, Plaintiffs Saleen Delgado and Nathan Gonzalez filed this action against Defendant Horace Ting (Defendant) seeking to recover for personal injuries and damages allegedly resulting from the accident. On 2/26/25, Defendant answered the complaint.

On 2/26/25, Defendant, electronically served Plaintiff Nathan Gonzalez (Plaintiff) with Form Interrogatories, Set 1. Plaintiff failed to serve responses to the discovery resulting in Defendant filing a motion to compel Plaintiff to serve verified responses without objection. On 11/21/25, the Court granted the motion and ordered Plaintiff to serve verified responses, without objections, on or before 11/27/25. (See 11/21/25 Minute Order). Defendant contends that Plaintiff served responses on 12/8/25 by emailing the responses to email addresses which were not designated by Defendant's counsel for electronic service in this action and Defendant did not consent to receive service at those addresses. (See Motion, p.2:9-15, p.4:8-10, p.5:2-7, p.5:17-p.6:27; Hovsepian Decl. ¶4). Defendant claims to have not become aware of the service of the responses until 2/17/26. Thereafter, Defendant claims to have sent a meet and confer letter regarding deficiencies in the responses. (Hovsepian Decl. ¶5). Plaintiff failed to provide further responses.

On 3/26/26, Defendant filed and served the instant motion seeking an order compelling Plaintiff to provide further responses, without objections, to Form Interrogatories, Set 1, within 15 days. Additionally, Defendant requests an order that Plaintiff and/or Plaintiff's attorney, Abdul 'Sal' Wakil, pay Defendant sanctions in the amount of \$869.95.

No opposition or other response to the motion has been filed.

ANALYSIS

The proofs of service attached to the motion, separate statement and proposed order show that the documents were electronically served on Plaintiff's counsel at: sal@sawlawgroup.com. However, the email address of record for Plaintiff's counsel as shown in eCourt is: info@sawlawgroup.com.

Considering Defendant's argument that the service of the

responses on 12/8/25 was not valid because the email was not sent to the email address designated by Defendant's counsel for electronic service in this action, the Court cannot find that the service of the motion on Plaintiff's counsel at sal@sawlawgroup.com is valid service since it is not the email address designated by Plaintiff's counsel in eCourt, despite the fact that it is listed on the complaint and on other documents filed by Plaintiff's counsel in this action.

Moreover, this is not the first time there have been issues with the service of motions by defense counsel on Plaintiff. (See 11/21/25 Minute Order). Notably, the Defendant's Motion for

Terminating Sanctions and Motion to Deem Requests for Admissions Admitted filed and served on 2/17/26 were served on Plaintiff's counsel at both sal@sawlawgroup.com and info@sawlawgroup.com. However, as noted above, the instant motion was only served on Plaintiff's counsel at sal@sawlawgroup.com, which is not Plaintiff's counsel's email address of record in this action.

There is no opposition or other response to the motion by Plaintiff to cure the defect in notice.

The Court further notes that the none of the exhibits referenced in the declaration of attorney Hovsepian and claimed to be attached thereto are attached

CONCLUSION

The motion is placed off calendar.